

assembled at a meeting of their body duly constituted, and *having power to determine on any sale, exchange, partition, mortgage, lease, or other disposition* of any property of the charity," are empowered to pass the *legal estate* for giving effect to such disposition (g).

40. **Re-investment of sale monies.**—Where a sale or exchange is effected under the Charity Acts, the purchase or exchange monies may be laid out with the consent of the Commissioners in the purchase of other lands *without a licence * in mortmain* (a). But the Act is silent [*541] as to the requirement of 9 G. 2, c. 36, and the conveyance should therefore be by deed indented attested by two witnesses, and inrolled in Chancery within six calendar months (b).

41. **Investment of accumulations in land.**—Where there are *accumulations* from a charity estate, the Court, considering the purchase of *land* with personal estate belonging to charity to be opposed to the general policy of 9 G. 2, c. 36, will not as a general rule sanction such an investment (c). But there is nothing *illegal* in such an investment, if accompanied with the formalities required by the Mortmain Act; and therefore should a highly beneficial purchase offer itself, the trustees themselves would, it is conceived, run no risk in so investing the accumulations (d). Indeed the Court itself has made such orders where the purchase of the land was not the main object, but incidental to a general scheme as for the enlargement of a school (e). But in every case where land *comes into mortmain for the first time*, the conveyance must be by indenture sealed and delivered in the presence of two credible witnesses, and inrolled within six calendar months from the execution (f).

Inrolment.—Even where the land of a charity, whether

(g) 23 & 24 Vict. c. 136, s. 16; and see the still later enactment of 32 & 33 Vict. c. 110, s. 12, *post*, p. 547.

(a) 18 & 19 Vict. c. 124, s. 35.

(b) As to these requirements, see *ante*, p. 96.

(c) Attorney-General v. Wilson, 2 Keen, 680.

(d) See Vaughan v. Farrer, 2 Ves. 188.

(e) Attorney-General v. Mansfield, 14 Sim. 601; Honnor's Trust, V. C. Kindersley, May 3, 1853.

(f) But see Attorney-General v. Day, 1 Ves. sen. 222. As to purchases before 25 July, 1828, see 9 G. 4, c. 85.